GOVERNMENT OF ZAMBIA

STATUTORY INSTRUMENT NO. 89 of 2025

The Income Tax Act
(Laws, Volume 23, Cap. 323)

The Income Tax (GOPA Infra GmbH) (Approval and Exemption) Order, 2025

IN EXERCISE of the powers contained in section 15 of the Income Tax Act, the following Order is made:

Title and commencement

1. (1) This Order may be cited as the Income Tax (GOPA Infra GmbH) (Approval and Exemption) Order, 2025.

(2) This Order is deemed to have come into operation on 1st January, 2015, and shall stand revoked on 31st December, 2026.

Approval and exemption from income tax

2. The GOPA Infra GmbH is an approved organisation for the purpose of exemption from income tax for the duration of the projects specified in the agreements.

Exemption from tax

3. The income earned including interest, fees and commission by the approved organisation referred to under paragraph 2 pursuant to the agreements specified in the Schedule is exempt from income tax pursuant to Part III of the Act.

Revocation of S.I. No. 65 of 2024

4. The Income Tax (GOPA Infra GmbH) Approval and Exemption) Order, 2024 is revoked.

Copies of this Statutory Instrument can be obtained from the Government Printer, P.O.Box 30136, 10101 Lusaka Price K4.00 each

SCHEDULE

(*Paragraphs* 2 *and* 3)

Agreements

1. The Contract between the Government of the Republic of Zambia represented by the Ministry of Local Government and Housing and GOPA Infra GmbH for Consultancy Services for Strengthening Local Governance in Zambia capital grant scheme phase II, No. BMZ ID 2011 65836, dated 13th February, 2015.

2. The Contract between the Government of the Republic of Zambia represented by the Ministry of Local Government and GOPA Infra GmbH for Consultancy Services for Strengthening Local Governance in Zambia capital grant scheme phase III, No. BMZ NR. 2014 67323, dated 20th November, 2019.

3. The Contract between the Government of the Republic of Zambia represented by the Ministry of Local Government and GOPA Infra GmbH for Decentralised Development through District Infrastructure (Bus Stations and Markets), No. BMZ NO. 2016 67 344, dated 13th July, 2020.

4. The Contract between the Government of the Republic of Zambia represented by the Ministry of Local Government and H.P. Gauff Ingenieure GmbH & Co KG for Consultancy Services for the Project "Strengthening Local Governance in Zambia Capital Grant Scheme Phase I", BMZ No. 2006 66 313, dated 14th December, 2017, and Assignment of Contract for Consulting Services of the Project "Strengthening Local Governance in Zambia Capital Grant Scheme Phase I" (BMZ No. 2006 66 313), dated 20th August, 2021, between the Government of the Republic of Zambia represented by the Ministry of Local Government and H.P. Gauff Ingenieure GmbH & Co KG - JBG and GOPA Infra GmbH.

5. The Contract between the Government of the Republic of Zambia represented by the Ministry of Water Development, Sanitation and Environmental Protection and H.P. Gauff Ingenieure GmbH & Co KG for Consulting Services for the Design Review and Supervision of the Water Supply and Sanitation Improvement Project in the Prioritised Urban Centres of (Kasama, Mbala, Mpika and Nakonde) Chambeshi Water and Sewerage Company Lot 3 (Construction Supervision - Time Based), Contract No. MWDSEP/ISTWSSP/ADB/CS-003A/2018-2-3, dated 11th February, 2019, and Addendum No. 1 between the Government of the Republic of Zambia represented by the Ministry of Water Development and Sanitation and GOPA Infra GmbH for the Design Review and Supervision under the Water Supply and Sanitation Improvement Project for Chambeshi Water Supply and Sanitation Company MWDSEP/ISTWSSP/ADB/CS-003A/2018-2-3 (Construction Supervision - Time Based), dated 27th January, 2022.

6. The Contract between the Government of the Republic of Zambia represented by the Ministry of Water Development, Sanitation and Environmental Protection and H.P. Gauff Ingenieure GmbH & Co KG for Consultancy Services for the Design Review and Supervision of the Water Supply and Sanitation Improvement Project in the Prioritised Urban Centres of (Mansa, Samfya, Mwense and Kwambwa) Luapula Water and Sewerage Company Lot 2 (Construction Supervision Time Based), Contract No. MWDSEP/ISTWSSP/ADB/CS 003A/2018 2 2, dated 11th February, 2019, and Addendum No. 1 between the Government of the Republic of Zambia represented by the Ministry of Water Development and Sanitation and GOPA Infra GmbH for the Design Review and Supervision under the Water Supply and Sanitation Improvement Project for Luapula Water Supply and Sanitation Company MWDSEP/ISTWSSP/ADB/CS-003A/2018-2-2 (Construction Supervision - Time Based), dated 31st October, 2022.

C. MULENGA,
Minister of Finance and National Planning

Lusaka
29th December, 2025
[MFNP/BO/64/9/6]